

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 24-004
Amendments to Title 8 of the Chickasaw Nation Code
(Election Rules and Procedures)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures for the election of public officials, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to sections of Title 8 of the Chickasaw Nation Code, all other sections of Title 8 to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 8-103

CEREMONY.

A. Installation of elected officials for Judicial and Legislative seats shall take place on October 1 or on the first normal, non-holiday weekday of October of the year of the election, beginning on or about 11:00 a.m. ~~1:30 p.m.~~ The swearing in ceremony shall be conducted by one (1) of the Supreme Court Justices. Should circumstances beyond the control of the official being sworn in preclude him from being sworn in at that time, the swearing in shall be accomplished at the earliest possible time convenient and practicable. The location of the ceremony shall be in a place determined annually by the Election Secretary/Tribal Registrar with the advice and consent of the Election Commission.

SECTION 8-203

FILING PERIOD.

The filing period for tribal elections shall be ~~begin~~ the first Monday, Tuesday and Wednesday in June ~~and shall last until the Friday of that same week,~~ unless otherwise provided by law for purposes of special elections. Hours of filing on each day shall be between 8:00 a.m. and 4:30 p.m. The Declaration of Candidacy shall be filed no later than 4:30 p.m. on the Wednesday ~~Friday~~ of the week of filing in the office of the Election Secretary/Tribal Registrar.

SECTION 8-204

FILING FEE; VOTER LISTS.

A. The filing fee for offices of the Nation shall be:

3. Gubernatorial Candidate Team: \$ 2,500 ~~1,500.00.~~

E. Voters Lists.

Qualified Candidates and Candidate/teams shall each receive a computer printout, CD and adhesive labels of the Voters List for the district or districts for which they are a Candidate. Such list shall contain, only, each Voter's name, address and zip code, in zip code order, and shall be available within five (5) days ~~on the Wednesday~~ following the ~~date that the~~ filing period for Candidates officially closes. At that time, Candidates may compare their lists to the master list of their District(s) for accuracy. All qualified Candidates receiving such list shall, on the afternoon of the day after Voter registration closes, receive a list of the qualified Voters who were added up to the time registration closed. There shall be no additional charge for the updated list. All such CDs shall be formatted for operation in IBM compatible computers and current software.

SECTION 8-303**VOTER REGISTRATION CLOSING DATE.**

B. Voter registration shall close three weeks prior to election day ~~on the third Monday in July~~ and shall remain closed until election day or the run-off election day.

SECTION 8-402**BALLOT MAILING TO VOTERS.**

A. All official ballots shall be mailed to each qualified voter fifteen days prior to ballot counting day, ~~on Friday following the third Monday of July~~. The names on the outgoing envelopes shall be the same as appears on the Voter registration application.

SECTION 8-403**RETURN DATE.**

Ballots must be received by mail no later than 10:30 a.m. on the last Tuesday of July ~~after the third Monday of August~~

SECTION 8-410**INVALID BALLOTS.**

Ballots shall be counted invalid for any of the following reasons:

1. the ballot is received after the deadline of 10:30 a.m. on the last Tuesday of July ~~following the third Monday in August~~ of the election year;

SECTION 8-412**BALLOT COUNTING.**

The Election Commission and the Election Secretary/Tribal Registrar shall conduct and supervise the ballot counting in the Nation's headquarters on the last Tuesday of July ~~Tuesday immediately following the third Monday in August~~ of the election year, starting at or about 11:00 a.m. Results of the counting shall be declared and announced in accordance with Sections 8-415 and 8-418.

SECTION 8-427**RUNOFF ELECTION PROCEDURES.**

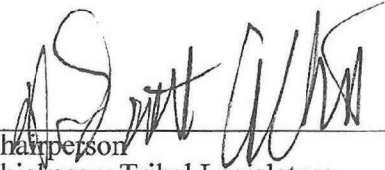
The runoff election ballots shall be of the same format as the General or Special Election ballots and shall be mailed to all Voters fifteen days prior to ballot counting day, ~~on the Monday three (3) weeks prior to the third Tuesday of September in the year of the election~~. The ballots must be returned by the last Tuesday of August ~~third Tuesday in September~~, no later than 10:30

a.m., and shall be counted on the same day (Tuesday) at the same location and under the same procedures and regulations as those used in the regular election.

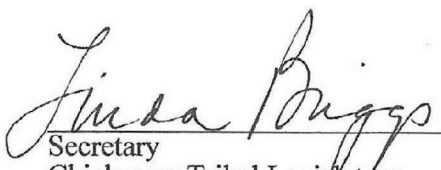
SECTION 8-430**RECOUNT FEE.**

A Candidate may request a recount of votes ~~which involve his electoral district by delivery of a cashier's check or postal money order for one thousand dollars (\$1,000) two hundred fifty dollars (\$250) for each legislative district to be recounted "~~

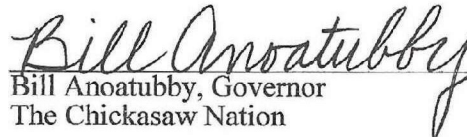
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 16, 2007, by a vote of 11 ayes, 2 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: MAR 16 2007
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 24-004
Amendments to Title 8 of the Chickasaw Nation Code
(Election Rules and Procedures)

Explanation: This resolution amends the rules and procedures for the election of tribal officials in the Chickasaw Nation.

Requested By: Steve Woods, Committee Chair
Election Rules and Regulations Ad Hoc Committee

Presented By: Steve Woods, Committee Chair
Election Rules and Regulations Ad Hoc Committee